ELEMENTS OF AN OFFENCE

INTRODUCTION

The **Black's Law Dictionary** defines an offence as a violation of the law. Nigerian criminal law also defines it as an act or omission which is rendered punishable by some legislative enactment.

The elements of an offence are contained in that particular offence depending on the wording of the offence, and the prosecution must prove all elements for which an accused person is standing trial. Every offence has two elements: the physical element and the mental element, except strict liability offences which are complete upon the manifestation of the physical element only.

1. ACTUS REUS (THE PHYSICAL ELEMENT)

Positive Act

The physical element of an offence may manifest by way of a positive act, as intent alone—no matter how condemnable—cannot amount to an offence. For instance, if John moves Mary's bag with the intention of permanently depriving Mary of its use, John has committed the offence of stealing against Mary, and the movement of the bag from its original position is the physical element (actus reus) of that offence.

Furthermore, the actus reus can manifest in words in respect of certain offences such as:

- • Defamation
- • Sedition
- • Taking unlawful oath
- • Conspiracy

The physical element in these cases is committed by words uttered by the accused.

Attempt and Possession

- • **Attempt**: Someone can be guilty of an attempt to commit an offence if, with intent to commit it, they begin to put their intention into execution by means adapted to its fulfillment and manifest the intention by some overt act.
- • **Possession**: For several offences, it is enough that the accused is in possession of something that contravenes the law, even though they have not begun to put that thing to any unlawful use. For example, **Section 148(3) of the Criminal Code** provides for the unlawful possession of counterfeit coin or means of making them. Mere possession is enough to amount to the physical element, regardless of whether the

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money has been put to use. Possession may be physical or through the agency of another person (constructive possession).

Passive State of Affairs

In some cases, the physical act can manifest by way of a passive state of affairs. For example, where a club or an association of which you are a member is banned by the government, you are ordinarily supposed to stop your membership immediately; continuing membership after the ban becomes the physical element of that offence.

OMISSION

Most crimes are committed by positive action, but in some circumstances, a passive failure to act may be deemed to constitute the requisite 'act'.

Omission is the failure or omitting to do what the law requires or commands a person to do, the failure of which constitutes an offence. The law is generally reluctant to punish people for omissions, so the majority of crimes involve overt acts. It is only in certain cases where people are forced to act that failure to do so is treated as an offence. Examples criminalized by the Criminal Code include:

- • Duties imposed on peace officers (police officers) to suppress a riot
- • Duties imposed on a ship's crew to obey
- • Duty placed on a family head to supply necessaries for a child under fourteen years of age

Situations Where Legal Duties to Act Arise:

1. **Duty Arising Out of Relationship**: Close relationships create a duty to act, such as that owed by parents to children or spouses to each other. Cases: In ***R v Gibbins and Proctor*** **[1918] 13 Cr App R 134**, a father and his partner were convicted of murdering a child who died from withheld food. In **Downes**, a parent belonging to a religious sect ('peculiar people') who relied on prayer instead of medicine failed to call a doctor for his sick child and was convicted of manslaughter.

2. **Where Responsibility Has Been Assumed**: When a defendant voluntarily assumes responsibility or a duty towards another, a legal duty to act arises. Case: In **R v. Instan (1893)**, the defendant lived with her 73-year-old aunt who developed gangrene and could not fend for herself during her final 12 days; the defendant gave her no food and sought no medical assistance, and was convicted of manslaughter.

3. **Duty Assumed by Contract**: A duty to aid others may arise out of contract. Case: In ***R v Pittwood*** **(1902) 19 TLR 37**, a railway operator employed to ensure safety was found guilty of manslaughter when a person was killed crossing a railway line because the defendant left the gate open as a train approached.

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4. **Duty Based on Creation of Peril (Dangerous Situation)**: Case: In ***R v Miller*** **([1983] 2 AC 161)**, an appellant squatted in a house, lit a cigarette, fell asleep, and dropped it onto a mattress. Waking up to a smoldering mattress, he did nothing except move to another room and sleep; the house caught fire, and he was convicted of arson.

THE ACTUS REUS MUST BE VOLUNTARY OR WILLED

A fundamental pre-condition of criminal liability is that the actus reus of a crime requires human action and must be committed voluntarily. If an accused person's physical movement is involuntary or unconscious (e.g., in a state of mental blackout or sleep), legally speaking they are not acting, and there is no criminal liability.

This rule is clearly contained in **Section 24 of the Criminal Code**: except for negligent acts or omissions, a person is not criminally liable for an act or omission which occurs independently of the exercise of their will, or for an event which occurs by accident. The code recognizes the physical existence of the act but will not criminalize it because it was done independently of the accused's will.

2. MENS REA (THE MENTAL ELEMENT)

Mens rea refers to the mental element of a crime. To appreciate its meaning, distinctions must be made regarding different measures of blame:

INTENTION

Intention is simply having a foresight of the consequence and a desire for the consequence. Desire for the consequence appears to be the hallmark of intention. However, courts have sometimes held that the commission of an intentional act with reckless consequences is enough to describe the consequence as intended. Cases: In **Hyam v. DPP** concerning murder, the House of Lords held that there is intention to cause death or grievous bodily harm if the accused deliberately did an act knowing that death or grievous bodily harm was a probable consequence, even if they did not desire that result. See also **R v. Stean**.

Proof of Intention

Intention is very difficult to prove. As English Chief Justice Bryan stated: 'the devil himself knoweth not the intention of a man; but the state of a man's mind is as much a fact as the state of his digestion.'

- • No one can see another's mind or state intentions with absolute certainty, except when a man confesses (though confessions can also be misconducted).
- • Note on Motive: Motive is distinct from intention and is not an essential mental element of an offence; it is not relevant to criminal liability unless specified by statute, and is only considered during sentencing.

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RECKLESSNESS

An accused is reckless when they deliberately disregard a substantial and unjustifiable risk and take it. In **Ibeanu v. Ogbeide**, the Supreme Court held that recklessness is an attribute of mental indifference to an obvious risk. A person is not reckless if they foresee criminal liability as only a remote possibility.

NEGLIGENCE

Negligence is the failure to exercise such care, skill, or foresight as a reasonable person would exercise in the circumstances. The test is strictly objective, measuring the defendant's conduct against an ordinarily, reasonably careful person who ought to have foreseen and avoided the consequences.

Distinction: Recklessness is more serious than negligence. A reckless actor fails to consider consequences or acts regardless with culpable indifference, whereas a negligent actor simply makes an error in judgment.

3. CONCURRENCE OF THE ACTUS REUS AND MENS REA

The general rule is that before the prosecution can secure a conviction, mens rea must coincide in point of time with the act or omission that constitutes the actus reus (they must occur simultaneously and complement each other). Mens rea is an intention to a present act, not a future act.

Exceptions to the Concurrence Rule:

1. **Continuing Act**: If the actus reus is a continuing act, it is sufficient for the mens rea to be acquired during its continuance. Case: In **Fegan v. Metropolitan Police**, the appellant accidentally drove onto a police officer's foot, abused the officer when asked to move, and sat on the car for two to three minutes before driving off. On appeal, it was held that his conduct constituted a continuing battery; mens rea did not need to be present at inception, but could be superimposed onto an existing ongoing act.

2. **A Series of Transactions**: If the actus reus is a single series of transactions, the mens rea is deemed to coincide with it at any point during those transactions. Case: In **Thabo Meli v. R**, the appellants struck the deceased with intent to kill, believed him dead, and rolled his body over a cliff to look like an accident. The victim was actually alive and died from exposure on the cliff overnight. The Privy Council rejected the argument that intent and the fatal act did not coincide, holding it impossible to divide up a single transaction, and confirmed the conviction. **See also R v. Church**.

4. STRICT LIABILITY

Strict liability offences are acts where the need to prove fault, intention, or knowledge is dispensed with; the offence is complete solely upon proof of the physical elements.

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Cases:

- • In **R v. Efana**, the accused were guilty of taking cases out of customs despite believing in all innocence that they were entitled to do so, because the relevant Customs Ordinance provisions were absolutely prohibitive.
- • In **Hobbs v. Winchester**, a butcher was convicted of selling unsound meat even though he could not have discovered the defect through reasonable examination and was not negligent. The Court of Appeal held that anyone engaging in business for profit must take the risk of criminal liability without fault in the interest of public safety.

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